and an armed invasion of the country. The state contended that we were actors in a conspiracy to overthrow the government.

We were charged with sabotage and conspiracy rather than high treason because the law does not require a long preparatory examination (which is highly useful to the defense) for sabotage and conspiracy as it does for treason. Yet the supreme penalty — death by hanging — is the same. With high treason, the state must prove its case beyond a reasonable doubt and needs two witnesses to testify to each charge. Under the Sabotage Law, the onus was on the defense to prove the accused innocent.

Bram Fischer stood up and asked the court for a remand on the grounds that the defense had not had time to prepare its case. He noted that a number of the accused had been held in solitary confinement for unconscionable lengths of time. The state had been preparing for three months, but we had only received the indictment that day. Justice de Wet gave us a three-week adjournment until October 29.

I was disturbed to discover that first day that Winnie was unable to attend. Because of her banning and her restriction to Johannesburg, she needed police permission to come to court. She had applied and been refused. I also learned that our house had been raided and the police had detained a young relative of Winnie's. Winnie was not the only wife being harassed. Albertina Sisulu and Caroline Motsoaledi were detained under the Ninety-Day Detention Act, and Walter's young son Max was also arrested. This was one of the state's most barbarous techniques of applying pressure: imprisoning the wives and children of freedom fighters. Many men in prison were able to handle anything the authorities did to them, but the thought of the state doing the same thing to their families was almost impossible to bear.

Winnie subsequently appealed to the minister of justice, who granted her permission to attend the trial on the condition that she did not wear traditional dress. Ironically, the same government that was telling us to embrace our culture in the homelands forbade Winnie from wearing a Xhosa gown into court.

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